



Cyber Liability Insurance Proposal for **Golden Isle Leadership Foundation, Inc.**

Total Payable: \$1,555.84



Premium: \$1,096.00

Carrier Fee: \$50.00

Service Fee: \$350.00

SL Fees & Taxes: \$59.84

State Charges: -

Limit: \$1,000,000

Retention: \$1,000

Price and coverage may change based on application answers provided.



When it comes to protecting your clients against financial loss from a cyber-attack, securing the right insurance policy matters. At Amwins, we don't just stop at protection after a loss occurs. Our exclusive Cyber+ insurance program combines tailored and enhanced coverage with industry-leading cyber security services.

Coverage highlights

- \$500,000 social engineering and invoice manipulation fraud limits
- Physical property included in social engineering and invoice manipulation coverage
- Invoice fraud not restricted to “net” losses
- No restriction of “products not yet delivered, or services not yet performed” in social engineering or invoice manipulation fraud coverage
- Non-IT dependent product/service supplier interruption/ system failure included
- First dollar forensics (no retention)
- ‘Pay on behalf’ event management and extortion expenses
- 365-day period of restoration
- Third party event contractual response expenses
- Full limit hardware bricking/replacement coverage
- Breach costs primary to other valid insurance
- Primary, non-contributory where previously agreed via written contract
- Additional Insured and Waiver of subrogation granted where previously agreed via written contract
- \$50,000 HIPAA recertification costs
- Only one retention or waiting period need be satisfied (greater value of the two)
- Breach costs outside policy limit
- \$1M additional defense costs outside policy limit

Cyber security services included

Breach response services through Mullen Coughlin, a leading cyber security law firm, which includes a 24/7/365 breach hotline and email that immediately connects you with a breach coach.

Portfolio risk mitigation services from Upfort, including:

- Attack surface monitoring
- Inbox protection
- Browser firewall
- Cyber security education program with new courses added regularly
- Phishing simulations
- Risk analytics
- Endpoint detection and response (EDR) with antivirus and security information and event management*

**Available for an additional charge*





Cyber+ Risk Mitigation Services from Upfort Shield



Upfort Shield is an advanced cyber security suite that provides enterprise-grade defenses to organizations of any size. Through Amwins' Cyber+ product, your clients receive the following risk mitigation services from Upfort Shield.

Email Security

Shield's **Inbox Defender** provides businesses with AI-powered threat detection proven to prevent phishing attacks, ransomware, and financial fraud.

- **Inbox Co-Pilot:** Empower employees with an AI-powered "co-pilot" to flag malicious links, dangerous attachments, and financial fraud.
- **Link Security:** Analyze the links found in all incoming emails for malicious content like phishing and malware.
- **Sender Verification:** Flag "spoofed" email accounts as well as trusted contacts whose accounts have been comprised.

Network Defense

Fortify your infrastructure and workforce with Shield's **Browser Firewall**, a lightweight, continuously updated, and powerful browser extension.

- **Intercept Unsafe Websites:** Redirect users when they access an unsafe site used to steal sensitive info or deliver malicious software.
- **NSFW Content Filter:** Block employees from accessing prohibited content at work.
- **Real-time Threat Intelligence:** Continuously updated automatic defenses informed by Upfort's Consolidated Threat Database.

Security Training

Enlist your team to be front-line digital defenders with **Cyber University**.

- **Employee Security Training:** Fortify your human firewall with interactive training modules designed by security experts.
- **Phishing Simulations:** Launch simulated phishing attacks that mimic the latest tactics to test your team's security preparedness.
- **On-demand certificates:** Generated summaries of your training efforts to comply with regulatory and contractual bodies.





Continuously Monitoring

Shield's **Sentry** continuously scans your network for vulnerabilities along with actionable steps to address them.

- **Perimeter Threat Monitoring:** Scan all internet-facing systems and receive alerts when critical vulnerabilities are detected.
- **Workforce Threat Insights:** Use real-time reporting of inbox, browser, and user behavior risk to identify gaps in your human firewall.
- **Expert Guidance:** Access actionable guidance to resolve critical issues and connect with live security experts.
- **Dark Web Monitoring:** Receive alerts from automated dark web scans for leaks about your company and employees.

Extended Protection*

Upfort's **Guardian** platform delivers AI-powered EDR built for thoughtful SMBs.

- **Continuous Monitoring:** Scan your digital infrastructure 24/7 for malicious behavior and content.
- **360 Oversight:** Holistically view your entire digital ecosystem in one unified dashboard.
- **Remote Threat Isolation:** Remotely isolate devices to protect your network from advancing threats.
- **Expert Security Support:** Access Upfort trained security team with guidance as issues arise

**Available for an additional charge*



Item 1. Named Insured:	Golden Isle Leadership Foundation, Inc.	Quote Number:	6712197
Mailing Address:	1508 Bay St, Brunswick, GA, 31520	Quote Issue Date:	11/17/2025
		Quote Expiration Date:	02/15/2026
Broker:			
Item 2. Policy Period:	11/17/2025 to 11/17/2026 12:01 a.m. local time at Principal Address shown above		
Item 3.			
Policy Premium:	\$1,096.00		
TRIA (Included in Premium):	\$11.00		
Security Fee:	\$50.00		
Total Policy Cost:	\$1,146.00		
Item 4. Aggregate Policy Limit of Liability:	\$1,000,000.00		

Item 5. Insuring Agreement(s) purchased, Limits of Liability, and Retentions

Coverage under this Policy is provided only for those Insuring Agreements for which a limit of Liability appears below. The Aggregate Policy Limit of Liability shown above is the most the Insurer(s) will pay regardless of the number of Insuring Agreements purchased.

Insuring Agreement

A. EVENT RESPONSE AND RECOVERY INSURING AGREEMENTS

1. Event Management Expense	Limit of Liability	Retention
a) Forensics and Technical Response Loss b) Legal Services Loss c) Notification Loss d) Credit and Identity Monitoring Loss e) Data Recovery Loss f) Hardware Bricking Loss g) Utility Loss h) Public Relations Loss a) Reward Expense Loss b) Contractual Obligations Loss c) Third Party Event Response Expenses	\$1,000,000.00	\$1,000.00
2. Cyber Extortion	Limit of Liability	Retention
a) Extortion Loss b) Reward Expense Loss c) Public Relations Loss d) Extra Expense	\$1,000,000.00	\$1,000.00
3. Business Interruption & Reputational Harm	Limit of Liability	Retention
a) Business Interruption and System Failure Loss b) Reputational Harm Loss c) Extra Expense d) Reward Expense Loss e) Public Relations Loss	\$1,000,000.00	8 hours
4. Fraud	Limit of Liability	Retention
a) Social Engineering Loss b) Invoice Manipulation Fraud Loss c) Funds Transfer Fraud Loss	\$500,000.00	\$1,000.00

Insuring Agreement

B. LIABILITY AND DEFENSE

1. Information Privacy			Limit of Liability	Retention
a) Claim Expenses	d) PCI-DSS Response Expenses	g) Contractual Obligation Loss; and	\$1,000,000.00	\$1,000.00
b) Damages	e) Forensics and Technical Response Loss	h) Third Party Event Expenses		
c) PCI-DSS Fines, Penalties, Assessments	f) Legal Services Loss			
2. Network Security			Limit of Liability	Retention
a) Claim Expenses	c) Forensics and Technical Response Loss; and		\$1,000,000.00	\$1,000.00
b) Damages	d) Legal Services Loss			
3. Regulatory			Limit of Liability	Retention
a) Claim Expenses	c) Regulatory Fines and Penalties; and		\$1,000,000.00	\$1,000.00
b) Damages	d) Regulatory Assessments and Expenses			
4. Media			Limit of Liability	Retention
a) Claim Expenses; and			\$1,000,000.00	\$1,000.00
b) Damages				

Item 6. Waiting Period:		8 hours			
Item 7. Extended Reporting Period Premium: Percentage of Full Annual Premium (the annualized premium level in effect for the Policy):					
a)	1 Year: <u>75%</u> of the annual Policy premium				
b)	2 years: <u>125%</u> of the annual Policy premium				
c)	3 years: <u>150%</u> of the annual Policy premium				
d)	4 years: <u>175%</u> of the annual Policy premium				
e)	5 years: <u>200%</u> of the annual Policy premium				
f)	6 years: <u>225%</u> of the annual Policy premium				
Item 8. Notices to Us					
Item 9. Quota Share Participants:					
Insurer:	Scottsdale Insurance Company	Percentage Participation:	55%	Renewal of Policy No.	New
	Endurance American Specialty Insurance Company		45%		

Item 10. Policy Forms and Endorsements:

Form Title:	Form Number:	Form Edition Date:
Cyber Insurance Policy Declarations		





Cyber+ Insurance Quote

Cyber Insurance Policy	AMW-CYBER-01	08/25
OFAC Exclusion	AMW-OFAC-01	01/25
TRIA Disclosure	AMW-TRIA-01	01/25
Quota Share Endorsement	AMW-QS-01	06/25
Breach Costs Outside	AMW-BCOL-ASL-01	01/25
Defense Costs Outside	AMW-DO-ASL-01	01/25
Contingent Bodily Injury	AMW-CONTBI-01	01/25
Contingent Property Damage	AMW-CONTPD-01	01/25



Alabama

By issuing a policy or assuming a direct insurance risk under this surplus line law, we shall be deemed thereby to have appointed the Commissioner of the Alabama Department of Insurance as our attorney upon whom may be served all lawful process in any action or proceeding against us in this state arising out of such insurance. Service of process upon the Commissioner as our process agent shall be made by the proper officer of Montgomery County by serving copies in triplicate of the process upon the commissioner or upon his assistant, deputy, or other person in charge of his office.

Alaska

We may be sued upon a cause of action arising in this state under a surplus lines insurance contract made by us or evidence of insurance issued or delivered by the surplus lines broker under the procedure provided in Alaska Stat. Ann. § 21.33.

Arizona

By issuing or delivering a surplus lines policy through a surplus lines broker in Arizona, we are conclusively deemed to have irrevocably appointed the Director the Arizona Department of Insurance as our agent for acceptance of service of all legal process issued in this state in any action or proceeding under or arising out of such policy, and service of the process on the Director is lawful personal service on us. Duplicate copies of legal process against a nonresident insurer shall be served on the Director, and at the time of service the plaintiff shall pay to the Director the service of process fee prescribed in Ariz. Rev. Stat. Ann. § 20-167, taxable as costs in the action

Arkansas

If this state is the home state of the insured, by issuing the surplus lines policy or accepting the risk, we shall be deemed to have authorized service of process against us as provided in Ark. Code Ann. § 23-65-318 and to have appointed the Arkansas Insurance Commissioner as our agent for service of process issuing upon any cause of action arising in this state under any policy.

California

Pursuant to § 1772 of the California Insurance Code, we may be sued upon any cause of action arising in this state under any surplus line insurance contract made by us, or any evidence of insurance issued or delivered by the surplus line broker, pursuant to the procedure set forth in Sections 1610 to 1620, inclusive.

Delaware

We shall be sued, upon any cause of action arising in this state under any contract issued by us as a surplus line contract pursuant to the Delaware Insurance Code, in the Superior Court of this State. Service of legal

process against us may be made in any such action by service of two (2) copies thereof upon the Commissioner of the Delaware Department of Insurance and payment of the service of process fee specified in De. Code Ann. tit. 18, § 701.

Georgia

By issuing or delivering a surplus line policy through a surplus line broker in this state, we shall be deemed thereby to have appointed the Georgia Commissioner of Insurance as our attorney for acceptance of service of all legal process issued in this state in any action or proceeding arising out of the policy, and service of process upon the Commissioner shall be lawful personal service upon us. Duplicate copies of legal process against the insurers shall be served upon the Commissioner and at time of service the plaintiff shall pay a fee in an amount as provided in Ga. Code. Ann. § 33-8-1, taxable as costs in the action.

Hawaii

We may be sued upon any cause of action arising in this state under any surplus lines insurance contract made by us or evidence of insurance issued or delivered by the surplus lines broker pursuant to the procedure provided in part II, "Unauthorized Users" of Article 8 of the Hawaii Insurance Code.

Idaho

Pursuant to Idaho Code Ann. § 41-1231, we shall be sued, upon any cause of action arising in this state under any contract issued by us as a surplus line contract pursuant to this law, in the district court of the county in which the cause of action arose. Service of legal process against us may be made in any such action by service upon the Director of the Idaho Department of Insurance as provided in section Idaho Code Ann. § 41-334 (1). The Director shall forthwith mail a copy of the process served to the person designated by us in the policy for the purpose, by prepaid registered mail with return receipt requested. We shall have thirty (30) days from the date of service upon the Director within which to plead, answer, or otherwise defend the action. Upon service of process upon the Director in accordance with this provision, the court shall be deemed to have jurisdiction in personam over us.

Kansas

Service on the Kansas Commissioner of Insurance of any process, notice or demand against an insurance company shall be made by delivering to and leaving with the Commissioner or the Commissioner's designee, the original of the process and two (2) copies of the process and the petition, notice of demand, or the clerk of the court may send the original process and two (2) copies of both the process and petition, notice or demand directly to the Commissioner by certified mail, return receipt requested.

Kentucky

We shall be sued, upon any cause of action arising in the state under any contract issued by us as a surplus lines contract pursuant to Chapter 304, Subtitle 10, of the Kentucky Revised Statutes in the Circuit Court

of the county in which the cause of action arose. Service of legal process against us may be made in any such action by service upon the Secretary of State of the State of Kentucky as provided in Ky. Rev. Stat. Ann. § 304.3-230 (5). By issuing a surplus lines policy, we shall be deemed thereby to have authorized service of process against us in the manner and to the effect as provided in Ky. Rev. Stat. Ann. § 304.10-200.

Louisiana

We shall be sued, upon any cause of action arising in this state under any contract issued by us as a surplus lines contract in the district court of the parish in which the cause of action arose. Service of legal process against us may be made in any such action by service upon the Secretary of State of the State of Louisiana or some other person in his/her office whom he/she may designate during his/her absence. The Secretary of State shall forthwith mail the documents of process served, or a true copy thereof, to the person designated by us in the policy for the purpose by registered or certified mail or by commercial courier as defined in La. Stat. Ann. § 13:3204 (D). We shall have forty (40) days from the date of service upon the Secretary of State within which to plead, answer, or otherwise defend the action. Upon service of process upon the Secretary of State in accordance with this provision, the court shall be deemed to have jurisdiction in personam over us.

Maine

We shall be sued, upon any cause of action arising in the state under any contract issued by us as a surplus lines contract pursuant to this law, in the Superior Court. Service of legal process against us may be made in any such action by service of two (2) copies upon our designated agent. Upon service of process in accordance with Me. Rev. Stat. Ann. tit. 24, § 2019, the court is deemed to have jurisdiction in personam over us.

Missouri

We may be sued upon any cause of action arising in this state under any surplus lines insurance contract made by us or evidence of insurance issued or delivered by the surplus lines licensee pursuant to the procedure provided in sections Mo. Code Regs. Ann. tit. XXIV, §§ 375.256-375.266.

Nevada

Service of process against an unauthorized insurer affecting insurance under the provisions of this chapter must be made in accordance with Nev. Rev. Stat. Ann. § 680A.260. Upon service of process in accordance with Nev. Rev. Stat. Ann. § 685A.200, the court shall be deemed to have jurisdiction in personam over us. We have forty (40) days from the date of service of the summons and complaint upon the Nevada Commissioner of Insurance within which to plead, answer or defend any such suit. By entering into an insurance contract under the provisions of this chapter, we shall be deemed thereby to have authorized service of process against us in the manner and to the effect provided in Nev. Rev. Stat. Ann. § 685A.200.

New Mexico

In any cause of action arising in this state under any surplus line insurance policy issued by us, service of legal process against us may be made by service upon the New Mexico Superintendent of Insurance as provided for in Section 99 of the New Mexico Insurance Code. Upon service of process upon the Superintendent and mailing in accordance with this N.M. Stat. Ann. § 59A-14-16, the court shall be deemed to have jurisdiction in personam over us.

New York

Service of process upon us in any proceeding defined in N.Y. Insurance Law § 1213 (b) in any court of competent jurisdiction of this state may be made by serving the New York Superintendent of Insurance, any Deputy Superintendent or any salaried employee of the Department whom the Superintendent designates for such purpose with two (2) copies thereof and the payment to him or her of a fee of forty dollars (\$40.00).

Oklahoma

By issuing or delivering a surplus line policy through a surplus lines licensee or broker in this state, we shall conclusively be deemed thereby to have irrevocably appointed the Oklahoma Insurance Commissioner as our attorney for acceptance of service of all legal process, other than a subpoena, issued in this state in any action or proceeding under or arising out of the policy, and service of process upon the Insurance Commissioner shall be lawful personal service upon us. Triplicate copies of legal process against such an insurer shall be served upon the Insurance Commissioner, and at time of service the plaintiff shall pay to the Insurance Commissioner Twenty Dollars (\$20.00), taxable as costs in the action.

Oregon

We may be sued upon any cause of action arising in this state under any surplus lines insurance contract on an Oregon home state risk made by us or evidence of insurance issued or delivered by the surplus lines licensee pursuant to the procedure provided in Or. Rev. Stat. Ann § 735.490. By assuming surplus lines insurance, we shall be considered thereby to have subjected ourselves to Or. Rev. Stat. Ann. §§ 735.400 to 735.495.

Pennsylvania

We may be sued upon any cause of action arising in this Commonwealth under any surplus lines insurance contract made by us or evidence of insurance issued or delivered by the surplus lines licensee. Service of process shall be made pursuant to the procedures provided by 42 Pa.C.S. Ch. 53 Subch. B (relating to interstate and international procedure). By accepting surplus lines insurance, we shall be deemed thereby to have subjected ourselves to accepting service of process under 42 Pa.C.S. Ch. 53 Subch. B.

South Dakota

Any cause of action against us arising in this state on a surplus line contract shall be brought in the circuit court for the county in which the cause of action arose. Service of legal process against the us may be made in any such action by service upon the South Dakota Director of the Division of Insurance as provided in S.D. Codified Laws § 58-6-39. The Director shall forthwith mail a copy of the process served to the person designated by the us in the policy for the purpose, by prepaid registered or certified mail with return receipt requested. We shall have thirty (30) days from the date of service upon the Director within which to plead, answer, or otherwise defend the action. Upon service of process upon the Director in accordance with this provision, the court shall be deemed to have jurisdiction in personam over us. By issuing a surplus lines policy, we shall be deemed thereby to have authorized service of process against us in the manner and to the effect as provided in S.D. Codified Laws § 58-32-37.

Tennessee

We may be sued upon any cause of action arising in this state under any surplus lines insurance contract issued by us or certificate, cover note or other confirmation of the insurance issued by the surplus lines agent, pursuant to the same procedure as is provided for unauthorized insurers in Title 56, Chapter 2, Part 6 of this title and Tenn. Code Ann. § 56-7-105 (b) of the Tennessee Insurance Law. By assuming a surplus lines insurance risk pursuant to Title 56, Chapter 14, Part 1, we shall be deemed to have subjected ourselves to the requirements of Tenn. Code Ann. § 56-14-112.

Texas

By assuming a surplus lines risk under Chapter 981 of the Texas Insurance Code, we are subject to Tex. Ins. Code Ann. § 804.106. By engaging in the business of insurance as an eligible surplus lines insurer, we irrevocably appoint the Texas Secretary of State as agent for service of process arising from our engaging in the business of insurance in this state, other than service of process for an action or proceeding by the department or state. We hereby agree that service under this subsection has the same effect as personal service on us or our successor in interest. An appointment under Tex. Ins. Code Ann. § 804.106 (b) (1) is binding on us and our successor in interest. The plaintiff shall supply this address in any citation served under Tex. Ins. Code Ann. § 804.106. Service as set forth in this endorsement is in addition to any other method provided by law for service of process on a surplus lines insurer, including the method provided by Chapter 804, Subchapter C, of the Texas Insurance Code.

Washington

For any cause of action arising in this state under any contract issued as a surplus line contract under this Chapter 48.15, we must be sued in the superior court of the county in which the cause of action arose. By issuing a policy under Chapter 48.15, we have authorized service of process against us in the manner prescribed under Wash. Rev. Code § 48.02.200. We hereby designate the Washington Commissioner of Insurance as the person upon whom such service of process may be made.



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		01

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

OFAC EXCLUSION ENDORSEMENT

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (04/25)

1. Section III. EXCLUSIONS is amended by adding the following exclusion:

We shall not be liable for any **Loss** or **Damages** resulting from, and shall not be obligated to pay any **Claim Expenses** from any **Claim** against an **Insured** alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged violation of, or the exposure of any **Insured** or **us** to, any sanction, prohibition, or restriction under United Nations resolutions or the trade or economic sanctions, laws, regulations of the United States Treasury Department's Office of Foreign Assets Control ("OFAC").

All other terms and conditions of this Policy remain unchanged.



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		02

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NOTICE OF TERRORISM INSURANCE COVERAGE

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (04/25)

TERRORISM RISK INSURANCE ACT

You are hereby notified that the Terrorism Risk Insurance Act of 2002, as amended pursuant to the Terrorism Risk Insurance Program Reauthorization Act of 2019, effective January 1, 2021 (collectively referred to as "TRIA" or the "Act"), established a program within the Department of the Treasury under which the federal government shares, with the insurance industry, the risk of loss from future terrorist attacks. Under the Act, you have a right to purchase insurance coverage for losses arising out of acts of terrorism. As defined in Section 102(1) of the Act: The term "certified acts of terrorism" means any act that is certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States government by coercion.

DISCLOSURE OF FEDERAL SHARE OF COMPENSATION

You should know that where coverage is provided by this policy for losses resulting from "certified acts of terrorism," such losses may be partially reimbursed by the United States government under a formula established by federal law. However, your policy may contain other exclusions which might affect your coverage, such as an exclusion for nuclear events. Under the formula, the United States government agrees to reimburse eighty percent (80%) of covered terrorism losses that exceed the statutorily established deductible paid by the insurance company providing the coverage. The premium charged for terrorism coverage is provided below and does not include any charges for the portion of loss that may be covered by the federal government under the Act.

CAP ON LOSSES FROM "CERTIFIED ACTS OF TERRORISM"

You should also know that the Terrorism Risk Insurance Act, as amended, contains a \$100 billion cap that Limits United States government reimbursement as well as insurers' liability for losses resulting from "certified acts of terrorism" when the amount of such losses in any one calendar year exceeds \$100 billion. If the aggregate insured losses for all insurers exceed \$100 billion, your coverage may be reduced.

CONDITIONAL TERRORISM COVERAGE

The Terrorism Risk Insurance Program Reauthorization Act of 2019 is scheduled to terminate at the end of December 31, 2027 unless renewed, extended or otherwise continued by the federal government. Should the Act terminate on December 31, 2027, or be repealed, any terrorism coverage as defined by the Act provided in the policy will also terminate.

DISCLOSURE OF PREMIUM

In accordance with the Act, we are required to offer you coverage for losses resulting from an act of terrorism that is certified under TRIA as an act of terrorism. The policy's other provisions will still apply to



such an act. We are further required to provide you with a notice disclosing the portion of your premium, if any, attributable to coverage for terrorist acts certified under the Terrorism Risk Insurance Act.

Your premium for certified terrorism coverage is **undefined**. This amount does not include any charges for the portion of losses covered by the United States government under the Act.

If you choose to accept this offer, this form does not have to be returned.

You may choose to reject this offer by signing the statement below and returning to us. Your policy will be changed to exclude the described coverage.

NOTE: In this state, a terrorism exclusion makes an exception for (and thereby provides coverage for) fire losses resulting from a certified act of terrorism. Therefore, if you reject the offer of terrorism coverage, that rejection does not apply to fire losses resulting from a certified act of terrorism and coverage for such fire losses will be provided in your policy.

REJECTION OF COVERAGE FOR "CERTIFIED ACTS OF TERRORISM"

I hereby reject the purchase of certified terrorism coverage on behalf of the Policyholder/Applicant. I understand that the policy will provide no coverage for losses resulting from "certified acts of terrorism" (with the exception of fire losses resulting from a "certified act of terrorism"), and an exclusion of certain terrorism losses will be made part of this policy.

Policyholder/Applicant's Signature

Policyholder/Applicant's Signature

Print Name

Policy Number, if available

Date



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		03

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

Quota Share Endorsement

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (04/25)

1. This policy is issued on a quota share basis. Each Insurer listed in Item 9, of the Declarations will be responsible for its corresponding percentage of the Limits of Liability as specified in the Declarations.

The "lead quota share Insurer" is: undefined

2. Each quota share Insurer's liabilities to you under this policy are several and not joint and are limited solely to the extent of their individual quota share percentages. The quota share Insurers are not responsible for the obligations of any other quota share Insurer, who regardless of reason does not satisfy all or part of its obligation.
 - a) The collective limit of liability of the Insurers shall not exceed the Policy Limit of Liability as specified in the Declarations.
 - b) The Limit of Liability of each of the Insurers individually shall be limited to the pro rata percentage of liability set as specified in Item 1. Above.
3. Notice provided to the lead quota share Insurer as permitted or required by this Policy shall be considered notice to **Us**.
4. To the extent that **Our** consent is required under any provision of this Policy, the consent of the lead quota share Insurer shall be considered **Our** consent.
5. The lead quota share Insurer shall act on **Our** behalf with regard to the defense and settlement of **Claims** as set forth in Section VI. of this Policy and shall act on **Our** behalf with regard to other matters for which coverage is sought by the **Insured Organization** under the Insuring Agreements in Subsection I.A. of this Policy.

All other terms and conditions of this Policy remain unchanged.



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		04

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

BREACH COSTS OUTSIDE – ADDITIONAL SUBLIMIT ENDORSEMENT

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (01/25)

- Section I. **INSURING AGREEMENTS**, A. **EVENT RESPONSE AND RECOVERY**, 1) **EVENT MANAGEMENT EXPENSES** is amended to include the following:
 - L) **Additional Breach Costs**
- Section II. **DEFINITIONS**, is amended to include the following:
 - 20. **Additional Breach Costs** - means covered **Forensics and Technical Response Loss, Legal Services Loss, Notification Loss, and Credit and Identity Monitoring Loss** amounts paid up-to the **Additional Breach Costs Limit**
 - 21. **Additional Breach Costs Limit** – means undefined
- Section IV. **LIMITS OF INSURANCE**, is amended to include the following:
 - 4. **Additional Breach Costs** shall be paid by **us** prior to any payment for **Forensics and Technical Response Loss, Legal Services Loss, Notification Loss, and Credit and Identity Monitoring Loss** that would erode the **Policy** Aggregate Limit.
 - 5. The **Additional Breach Costs Limit** shall be in-addition to and not a part of the **Policy** Aggregate Limit of Insurance.
 - 6. Upon exhaustion of the **Additional Breach Costs Limit**, any additional payments made by **us** for **Forensics and Technical Response Loss, Legal Services Loss, Notification Loss, and Credit and Identity Monitoring Loss** shall be a part of the Aggregate Limit of Insurance stated in **Item 4** of the **Policy** Declarations.

All other terms and conditions of this Policy remain unchanged.



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		05

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DEFENSE COSTS OUTSIDE – SUBLIMIT ENDORSEMENT

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (04/25)

1. Section **I. INSURING AGREEMENTS**, subsection **B., LIABILITY AND DEFENSE**, is amended by adding the following Insuring Agreement:

ADDITIONAL DEFENSE COSTS

We shall pay, on behalf of the **Insured Organization**, **Additional Defense Costs** resulting from an **Information Privacy Wrongful Act**, **Network Security Wrongful Act**, **Regulatory Claim**, or **Media Wrongful Act**.

2. Section **II. DEFINITIONS**, is amended by adding the following:

Additional Defense Costs means covered **Claim Expenses** amounts paid up to the **Additional Defense Costs Limit**.

Additional Defense Costs Limit means undefined

3. Section **IV. LIMITS OF INSURANCE**, is amended by adding the following:

Additional Defense Costs shall be paid by **Us** prior to any payment for **Claim Expenses** that would erode the Aggregate Policy Limit of Liability stated in **Item 4.** of the Declarations.

The **Additional Defense Costs Limit** shall be in addition to, and not part of, the Aggregate Policy Limit of Liability set forth in **Item 4.** of the Declarations.

Upon exhaustion of the **Additional Defense Costs Limit**, any additional payments made by **Us** for **Claim Expenses** shall be a part of the Aggregate Policy Limit of Liability stated in **Item 4.** of the **Policy** Declarations.

All other terms and conditions of this Policy remain unchanged.



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		06

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONTINGENT BODILY INJURY ENDORSEMENT

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (04/25)

1. Section III. **EXCLUSIONS**, 2. Bodily Injury, is deleted and replaced by the following:

2. Bodily Injury

for any physical injury, sickness, or death sustained by any individual and, where resulting from such physical injury only, mental anguish, mental injury, shock or emotional distress.

Provided, however, this exclusion shall not apply to any **Claim** resulting from or for damage to tangible property caused by or resulting from an otherwise covered **Network Security Event**, **Information Privacy Event**, or **System Failure**.

2. Section IV. **LIMITS OF INSURANCE**, is amended by adding the following:

Solely with respect to coverage afforded under this endorsement, **Our** maximum liability, for all **Loss**, **Damages** and **Claim Expenses** resulting from a **Claim** alleging **Bodily Injury** shall be: \$250,000.

All other terms and conditions of this Policy remain unchanged.



ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	Endorsement No
undefined	undefined		07

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONTINGENT PROPERTY DAMAGE ENDORSEMENT

In consideration of the premium paid, it is agreed that this endorsement modifies insurance provided under the following:

AMWINS CYBER+ INSURANCE POLICY AMW-CYBER-01 (04/25)

1. Section III. **EXCLUSIONS**, 13. Property Damage is deleted and replaced by the following

13. Property Damage

for any physical injury to, or impairment or destruction of tangible property.

Provided, however, this exclusion shall not apply to any **Claim** resulting from or for damage to tangible property caused by or resulting from an otherwise covered **Network Security Event**, **Information Privacy Event**, or **System Failure**.

2. The following is added to section IV. **LIMITS OF INSURANCE**:

Solely with respect to coverage afforded under this endorsement, **our** maximum liability, for all **Loss**, **Damages** and **Claim Expenses** resulting from a **Claim** alleging tangible property shall be: \$250,000.

All other terms and conditions of this Policy remain unchanged.

Contact Mullen Coughlin 24/7/365 via their Breach Hotline at 844.578.1974
or via email at e-riskservices.breachhotline@mullen.law

Expert Breach Response Services

Mullen Coughlin, a law firm uniquely dedicated exclusively to representing organizations facing data privacy events, information security incidents, and the need to address these risks before a crisis hits, provides the **Breach Response Hotline** service to Amwins Cyber policyholders.

Mullen Coughlin recognizes that your organization may be victimized by a data privacy and security incident at any time of day and an immediate response is needed to mitigate the impact on its operations. Should a data privacy and security incident arise that requires outside counsel.

What to Expect

When you contact Mullen Coughlin's 24/7/365 Breach Hotline or email, the new file is immediately assigned to a Mullen Coughlin Intake Specialist (IS) who will review the matter information and confirm such details as where your organization is located and whether you are a subsidiary or a parent company (if applicable), as well as confirming the same information for any third-parties that may be impacted or involved by the incident as noted in the initial contact. Once this process is finished, the IS begins the conflicts review process.

Once conflicts are cleared, typically within 15 minutes, Mullen Coughlin will contact your organization's representative to obtain a high-level understanding of the incident and to schedule an initial privileged Triage Call with a lead partner and associate, all while communicating with and keeping E-Risk Services informed in real time and at no cost.

Policyholders can use this **Breach Response Hotline** in order to provide notice in the event of a **Information Privacy Event, Network Security Event, Extortion Threat, System Disruption, Social Engineering Loss, Invoice Manipulation Loss, or Funds Transfer Loss**. For more detail, please review Section VII. **GENERAL CONDITIONS** in this policy.



This **Policy** is a contract of insurance between **You** and **Us**. **Your** Policy contains all the details of the cover that **We** provide. This **Policy** consists of and must be read together with the Declarations and any Endorsements.

The insurance provided under this **Policy** for **Claims** made against **You** is on a claims-made and reported basis, and applies to **Claims** only if they are first made against **You** during the **Policy Period** and reported to **Us** during the **Policy Period** or any applicable optional **Extended Reporting Period**. **Claim Expenses** reduce the applicable Limits of Liability and are subject to Retentions.

Wherever used in this **Policy**, the words "**You**" and "**Your**" refer to the **Named Insured** and the **Named Insured's Subsidiaries**. The term "**Named Insured**" shall mean any person or organization shown in the Declarations. The word **Insured** means any person or organization qualifying as such pursuant to the definition of **Insured** found in the **Policy**. The words "**We**", "**Us**", and "**Our**" refer to the insurers providing this insurance.

I. INSURING AGREEMENTS

In consideration of the payment of premium, the **Insured's** satisfaction of the applicable **Retention** or **Waiting Period**, in reliance upon the **Application**, and subject to all terms of this **Policy**, the **Insured** and the insurers agree as follows:

A. EVENT RESPONSE AND RECOVERY

1) EVENT MANAGEMENT EXPENSES

We shall pay, on behalf of the **Insured Organization**, the following incurred as a result of an **Information Privacy Event** or **Network Security Event** first **Discovered** during the **Policy Period**:

- a) **Forensics and Technical Response Loss;**
- b) **Legal Services Loss;**
- c) **Notification Loss;**
- d) **Credit and Identity Monitoring Loss;**
- e) **Data Recovery Loss;**
- f) **Hardware Bricking Loss;**
- g) **Utility Loss;**
- h) **Public Relations Loss;**
- i) **Reward Expense Loss;**
- j) **Contractual Obligations Loss; and**
- k) **Third Party Event Response Expenses.**

2) CYBER EXTORTION

We shall pay, on behalf of the **Insured Organization**, the following incurred as a result of an **Extortion Threat** first **Discovered** during the **Policy Period**:

- a) **Extortion Loss;**
- b) **Reward Expense Loss;**
- c) **Public Relations Loss; and**
- d) **Extra Expense.**

3) BUSINESS INTERRUPTION & REPUTATIONAL HARM

We shall pay, on behalf of the **Insured Organization**, for the following incurred as a result of a **System Disruption** first **Discovered** during the **Policy Period**:

- a) **Business Interruption Loss and System Failure**;
- b) **Reputational Harm Loss**;
- c) **Extra Expense**;
- d) **Reward Expense Loss**; and
- e) **Public Relations Loss**.

4) **FRAUD**

We shall pay, on behalf of the **Insured Organization**, for the following losses incurred as a result of **Fraudulent Inducement Instructions, Computer Crimes, or Invoice Manipulation Fraud** first **Discovered** during the **Policy Period**:

- a) **Social Engineering Loss**;
- b) **Invoice Manipulation Fraud Loss**; and
- c) **Funds Transfer Fraud Loss**.

B. LIABILITY AND DEFENSE

1) **INFORMATION PRIVACY**

We shall pay, on behalf of the **Insured**, any of the following resulting from a **Claim** first made during the **Policy Period** or, if exercised, during the **Extended Reporting Period** for an **Information Privacy Wrongful Act**:

- a) **Claim Expenses**;
- b) **Damages**;
- c) **PCI-DSS Fines, Penalties and Assessments**;
- d) **PCI-DSS Response Expenses**;
- e) **Forensics and Technical Response Loss**;
- f) **Legal Services Loss**;
- g) **Contractual Obligation Loss**; and
- h) **Third Party Event Expenses**.

2) **NETWORK SECURITY**

We shall pay, on behalf of the **Insured**, any of the following resulting from a **Claim** first made during the **Policy Period** or, if exercised, during the **Extended Reporting Period** for a **Network Security Wrongful Act**:

- a) **Claim Expenses**;
- b) **Damages**;
- c) **Forensics and Technical Response Loss**; and
- d) **Legal Services Loss**.

3) **REGULATORY**

We shall pay, on behalf of the **Insured**, any of the following resulting from a **Regulatory Claim** first made against any **Insured** during the **Policy Period** or, if exercised, during the **Extended Reporting Period** for an **Information Privacy Wrongful Act**:

- a) **Claim Expenses;**
- b) **Damages;**
- c) **Regulatory Fines and Penalties;** and
- d) **Regulatory Assessments and Expenses.**

4) **MEDIA**

We shall pay, on behalf of the **Insured Organization**, any of the following incurred as a result of a **Claim** first made during the **Policy Period** or, if exercised, during the **Extended Reporting Period** for a **Media Wrongful Act**:

- a) **Claim Expenses;** and
- b) **Damages.**

II. DEFINITIONS

1. **Application** means all information provided by or on behalf of the **Insured** to **Us** as part of any request for this **Policy**, including any supplemental information submitted therewith within twelve (12) months prior to the inception of this **Policy**. All of the foregoing shall be deemed attached to, material and incorporated into this **Policy**.
2. **Business Interruption Loss** means:
 - a. the actual loss of **Business Income** the **Insured** solely and directly sustains due to:
 - i. a **System Disruption** as a direct result of a **Network Security Event**; or
 - ii. a **System Failure**;
 - b. **Business Interruption Loss** shall include any loss of **Business Income** the **Insured** sustains after the expiration of the **Waiting Period** and during the **Period of Restoration**; and
 - c. the reasonable and necessary costs or expenses incurred by the **Insured** to hire or retain any outside party or expert to determine and provide proof to **Us** of any such actual loss or **Business Income** described in subparagraph a. above.
3. **Business Income** means the amount equal to business revenues, less all expenses of the **Insured** other than any applicable business entity income tax amounts. **Business Income** shall be reduced to the extent that the insured is able to terminate, reduce or limit the **System Disruption**.
4. **Change of Control** means the acquisition of more than fifty percent (50%) of the outstanding securities, voting rights, or ownership interest in the **Named Insured**.
5. **Claim** means any:
 - a) written demand, request, or assertion seeking monetary damages, or non-monetary or injunctive relief;
 - b) civil proceeding, investigation, or suit commenced by service of a complaint, notice, request for information, or similar proceeding seeking monetary damages or non-monetary or injunctive relief;
 - c) civil proceeding, investigation, or suit commenced by service of a complaint, notice, request for information, or similar proceeding seeking monetary damages or non-monetary or injunctive relief;

- d) criminal proceeding commenced by the filing of charges, arrest or detainment, or a return of an indictment or similar document;
- e) request to toll or waive a statute of limitations applicable to a **Claim** referenced in paragraphs a-d above;
- f) formal appeal of a **Claim** referenced in paragraphs a-d above;
- g) with respect to a **Regulatory Claim**, any **Claim** referenced in subparagraphs a–f above which is a **Regulatory Claim**; or
- h) with respect to a **PCI-DSS Claim**, any **Claim** referenced in subparagraphs a–f above which is a **PCI-DSS Claim**.

6. **Claim Expenses** means any:

- a) attorneys’ fees, mediation and arbitration expenses, expert witness and consultant fees, attendance expenses, and other fees and costs incurred by **Us**, or by an **Insured** with our prior written consent, in the investigation and defense of a **Claim**;
- b) premiums for any appeal bond, injunction bond, attachment bond, or any similar bonds including bail and penal bonds; and
- c) post judgment interest.

Claim Expenses shall not include wages, salaries, or other compensation of directors, officers, similar executive, or employees of the **Insured**.

7. **Computer Crimes** means intentional, fraudulent, or unauthorized input, destruction, or modification of electronic data or computer instructions, by an entity which is not an **Insured Organization**, artificial intelligence or a person who is not an **Insured Person**, that results in;

- a) funds, securities, or other property, including funds held in escrow or belonging to a third party, to be transferred, paid or delivered.
- b) an account of the **Insured Organization**, or of its customer, affiliate, or vendor, to be added, deleted, debited, or credited; or
- c) **Invoice Manipulation Fraud**.

8. **Computer System** means **Insured Computer Systems** and **External Computer Systems**. **Computer System** shall also include **Non-IT Products or Suppliers Systems** solely with respect to causing or impacting **Business Interruption and System Failure Loss**.

9. **Confidential Information** means any of the following information or data, regardless of where it is stored or whether such data or information is electronic, non-electronic, or any other format:

- a) any natural person’s social security number, name, e-mail address, driver’s license or state identification number, address, telephone number, or any other protected personally identifiable information (PII);
- b) any natural person’s personally identifiable pictures or videos, internet browsing history, security access codes, or passwords, and account history;
- c) any natural person’s medical or healthcare data, biometric records, or any other protected health information (“PHI”);

- d) any natural person's credit card or debit card number, account number, or any other protected financial information;
 - e) any other non-public personal information or data of a natural person as specified in any Privacy Regulations; or
 - f) any confidential, proprietary information of any entity, other than an **Insured Organization** which an **Insured Organization** is contractually or legally required to hold or maintain in confidence; or is not known or accessible by the general public.
10. **Contractual Obligations Loss** means the **Insured's** contractual obligation under implied or statutory standard of care obligation to prevent an **Information Privacy Event** or **Network Security Event**, including:
- a) an unintentional violation by an **Insured Organization** to comply with its privacy policy;
 - b) a **PCI-DSS Claim**; and
 - c) an unintentional breach of contract or agreement with a business associate, as defined in the U.S. Health Insurance Portability and Accountability Act (HIPAA), as amended, or the Health Information Technology for Economic and Clinical Health Act (HITECH), as amended.
11. **Control Group** means any Chief Executive Officer, Chief Financial Officer, Chief Information Officer, Chief Operating Officer, Chief Information Security Officer, Chief Legal Officer/General Counsel, Risk Manager of an **Insured Organization** or the functional equivalent of any of the foregoing positions.
12. **Corporate Information** means any confidential or proprietary information of any third-party which an **Insured Organization** is contractually or legally responsible to hold or maintain in confidence.
13. **Credit and Identity Monitoring Loss** means costs and expenses to:
- a) establish and maintain call center or similar services to be used by natural persons whose **Confidential Information** was impacted in an **Information Privacy Event**;
 - b) provide identity theft identification and restoration services, credit monitoring, freezing, or thawing services to natural persons impacted by an **Information Privacy Event**; or
 - c) Retain the services of a **Cyber Response Firm** to provide legal, consultative, and professional services related to the **Credit and Identity Monitoring Loss** described in this definition.
14. **Cyber Event** means a **Computer Crimes, Extortion Threat, Fraudulent Inducement Instructions, Invoice Manipulation Fraud, Information Privacy Event, Media Wrongful Act, Network Security Event, and System Disruption**.
15. **Cyber Response Firm** means any firm listed on **Our** pre-approved response provider list, or any other firm subject to **Our** prior written consent.
16. **Cyberterrorism** means the use of information technology to execute attacks or threats by any person or group, whether acting alone, or on behalf of, or in connection with, any individual, organization, or government, with the intention to:
- a. cause harm;
 - b. intimidate any person or entity; or
 - c. cause destruction or harm to critical infrastructure or data,

in furtherance of financial, social, ideological, religious, or political objectives; which results in a threat or harm to **Insured's Computer System**.

17. **Damages** means any amounts an **Insured** becomes legally obligated to pay in respect of any **Claim**, including:

- a) monetary judgment, award, compensatory damages, or settlement, claimant's legal costs, and awards of prejudgment and post-judgment interest;
- b) punitive, exemplary, or multiplied damages and awards;
- c) **Regulatory Fines and Penalties**;
- d) **PCI-DSS Response Expenses**; and
- e) sums for deposit in a consumer redress fund as equitable relief for the payment of consumer claims due to an adverse judgment or settlement;

to the extent such damages are insurable under the law pursuant to any jurisdiction which most favors coverage and has a substantial relationship to an **Insured** or the **Claim**.

Damages shall not include:

- i. future profits or royalties, restitution, or disgorgement of the **Insured's** profits;
- ii. the cost of complying with orders granting injunctive or non-monetary relief, including specific performance, or any agreement to provide such relief;
- iii. loss of the **Insured's** fees or profits, return or offset of the **Insured's** fees or charges, or the **Insured's** commissions or royalties provided, or contracted to be provided;
- iv. fines, taxes or loss of tax benefits, sanctions unless covered as **Regulatory Fines and Penalties** or **PCI-DSS Fines, Penalties and Assessments**;
- v. liquidated damages to the extent that such damages exceed the amount for which the **Insured** would have been liable in the absence of such liquidated damages agreement, unless covered as **Regulatory Fines and Penalties** or **PCI-DSS Fines, Penalties and Assessments**;
- vi. any amount the **Insured** is not legally obligated to pay; or
- vii. amounts which are uninsurable under the law pursuant to the jurisdiction which best favors coverage under this **Policy**.

18. **Data Recovery Loss** means reasonable and necessary costs and expenses to:

- a) replace, restore, re-create, corrupted, destroyed, lost or stolen software or data which was impacted by an **Information Privacy Event** or **Network Security Event**; or
- b) retain the services of a **Cyber Response Firm** to provide legal, consultative, and professional services related to the **Data Recovery Loss** described in subparagraph a. above.

19. **Discovered** means the first date the **Control Group** becomes aware of a **Cyber Event**.

20. **Employee** means any individual whose labor or service is engaged by the **Insured**, including volunteers, part-time, seasonal, temporary or leased workers, and independent contractors.

21. **Extra Expense** means reasonable and necessary costs and expenses incurred or paid by an **Insured Organization** to:

- a) mitigate or reduce expenses resulting from a **System Disruption** of a **Computer System**;
- b) secure **Computer Systems**, including from a **Voluntary Shutdown**, such that a similar **System Disruption** is stopped and avoided in the future;
- c) reduce the **Period of Restoration**; or
- d) Retain the services of a **Cyber Response Firm** to provide legal, consultative, and professional services related to **Extra Expense** subparagraphs a-c.

22. **Extended Reporting Period** means one of the periods described in Item 7. of the Declarations which is elected and purchased.

23. **External Computer Systems** means any computer hardware, software, firmware, wireless device, voice-based telecommunication system, operating system, virtual machine, as well as any data stored thereon, including:

- a) associated input, output, processing, data storage, and mobile devices, networks, operating systems, application software, networking equipment, storage area networks, and other electronic data storage or backup facilities; and
- b) associated telephone systems, remote access systems, peripheral communication equipment and systems, industrial control systems (including Supervisory Control and Data Acquisition or “SCADA”), Internet of things (“IoT”), media libraries, extranets, and offline electronic data storage facilities;

which are operated by a third-party for an **Insured’s** benefit.

24. **Extortion Loss** means costs and expenses to:

- a) make payment, with **Our** prior written consent, of any funds, digital currencies (“crypto-currencies”), marketable goods, services, or other assets to the person or group which is believed to be responsible for, and to have made, such **Extortion Threat**;
- b) reduce or mitigate the severity of **Extortion Loss**;
- c) retain the services of a **Cyber Response Firm** to provide legal, consultative, and professional services related to the **Extortion Threat**.

25. **Extortion Threat** means any credible threat or series of related threats made to an **Insured** by a third party person or group, or by a rogue **Employee** who is not a member of the **Control Group** and who is acting in a manner not authorized by the **Insured Organization**, which threatens to take any of the following actions unless an **Insured** pays such group or person the funds demanded, or meet some other non-monetary demand, in exchange for the mitigation or removal of such threat:

- a) cause an **Information Privacy Event** or **Network Security Event**;
- b) alter, corrupt, damage, manipulate, misappropriate, publish, post, encrypt, delete, or destroy any **Insured Computer System, Corporate Information, or Confidential Information**.

26. **Forensics and Technical Response Loss** means reasonable and necessary costs and expenses incurred or paid by an **Insured Organization** to:

- a) investigate and determine the cause of the applicable **Information Privacy Event** or **Network Security Event**;
- b) mitigate or contain an ongoing **Information Privacy Event** or **Network Security Event**;

- c) identify and catalog what **Personally Identifiable Information** or **Corporate Information** was wrongfully disclosed, accessed, acquired, or otherwise compromised or impacted as a result of an **Information Privacy Event** or **Network Security Event**; or
 - d) retain the services of a **Cyber Response Firm** to provide consultative and professional services related to the **Forensics and Technical Response Loss** described in this definition.
27. **Fraudulent Inducement Instructions** means the misrepresentation of one or more facts by a third-party via telephone, e-mail, or other means of electronic communication with the intent of misleading an **Insured**.
28. **Funds Transfer Fraud Loss** means funds, money, securities, or the sale value of other property; lost through or transferred due to the intentional, fraudulent, or unauthorized input, destruction, or modification of electronic data or computer instructions into a **Computer System** by any person, entity, or artificial intelligence which is not an **Insured Organization** or **Insured Person**.
29. **Hardware Bricking Loss** means costs or expenses to replace hardware and software, including any critical components or devices, which have been rendered useless, inaccessible, damaged, or non-functional to an extent which is beyond repair or restoration, resulting from an **Information Privacy Event** or **Network Security Event**.
30. **Information Privacy Event** means any actual or suspected:
- a) failure to prevent unauthorized access to **Confidential Information**;
 - b) failure to properly manage, handle, store, protect, disclose, destroy, control, or collect **Confidential Information**;
 - c) violation of **Privacy Regulations**, including, but not limited to, the wrongful collection or disclosure of **Confidential Information**;
 - d) failure to comply with those portions of a privacy policy which govern the collection, dissemination, confidentiality, integrity, accuracy, disclosure, sale, access, or availability of **Confidential Information**;
 - e) failure to provide natural persons whose **Confidential Information** an **Insured** stores or maintains to access, delete, or amend their **Confidential Information** as required by any **Privacy Regulation**, including, but not limited to, the right to be forgotten” or “right to erasure” as described in the General Data Protection Regulation Standard, as amended;
 - f) failure to provide notification of any **Information Privacy Event** as required by any **Privacy Regulation**;
 - or
 - g) failure to disclose an actual or potential **Information Privacy Event** as required by any **Privacy Regulation**.
31. **Information Privacy Wrongful Act** means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, breach of duty, or other offense committed or attempted by an **Insured**, based upon or resulting from an **Information Privacy Event**.
32. **Insured** means the **Insured Organization** and any **Insured Person**.
33. **Insured Computer Systems** means any computer hardware, software, firmware, wireless device, voice-based telecommunication system, operating system, virtual machine, as well as any data stored thereon, and:

- a) associated input, output, processing, data storage, and mobile devices, networks, operating systems, application software, networking equipment, storage area networks, and other electronic data storage or backup facilities; and
- b) including, but not limited to, associated telephone systems, remote access systems, peripheral communication equipment and systems, industrial control systems including SCADA, IoT, media libraries, extranets, and offline electronic data storage facilities;

which are rented, leased, owned, or operated by an **Insured** or which are operated for an **Insured's** benefit by a third party under written contract between such third party and an **Insured**.

- 34. **Insured Organization** means the **Named Insured** and any **Subsidiary**, including any entity as a debtor in possession or the bankruptcy estate of such **Insured Organization**.
- 35. **Insured Person** means any past, current, or future Employee, director, officer, trustee, partner, general partner, managing partner, managing member, LLC member, or principal of an **Insured Organization**, including their lawful spouse or domestic partner, but only with respect to a **Wrongful Act** or **Cyber Event** committed within the scope of such individual's duties performed on behalf of the **Insured Organization**. **Insured Person** also shall include any **Independent Contractor** previously agreed to be indemnified by the **Insured Organization**, but only with respect to a **Wrongful Act** or **Cyber Event** committed within the scope of duties performed on behalf of the **Insured Organization**.
- 36. **Invoice Manipulation Fraud** means the release or distribution of any fraudulent invoice, payment, or shipping instruction to a third party, resulting from a **Network Security Event** or **Information Privacy Event**.
- 37. **Invoice Manipulation Fraud Loss** means the amount of an **Uncollectible Invoice**, including the sale value of any physical property lost, transferred, or owed.
- 38. **Legal Services Loss** means reasonable and necessary costs and expenses incurred or paid by an **Insured Organization** to:
 - a) determine the applicability of any notifications, communications, actions, or other services required or necessary for the **Insured Organization** to comply with applicable **Privacy Regulations**;
 - b) draft and develop letters, documents, or other materials to properly notify individuals or companies whose **Confidential Information** or **Corporate Information** was, or may have been, wrongfully disclosed, accessed, acquired, or otherwise compromised or impacted as a result an **Information Privacy Event**;
 - c) provide any legally required communications and reporting services to any regulatory, administrative, or supervisory authority;
 - d) costs and expenses incurred in order to comply with **Privacy Regulations** may govern an **Information Privacy Event**; and
 - e) retain the services of a **Cyber Response Firm** to provide legal, consultative, and professional services related to the **Legal Services Loss** described in this definition.
- 39. **Loss** means **Business Interruption and System Failure Loss, Contractual Obligations Loss, Credit and Identity Monitoring Loss, Data Recovery Loss, Extortion Loss, Extra Expenses, Forensics and Technical Response Loss, Funds Transfer Fraud Loss, Hardware Bricking Loss, Invoice Manipulation Fraud Loss,**

Legal Services Loss, Notification Loss, Public Relations Loss, Reward Expense Loss, Reputational Harm Loss, Social Engineering Loss, Third Party Event Response Expenses, and Utility Loss.

40. **Malicious Code** means any software or computer program, including but not limited to auto-reproduction programs, computer viruses, worms, Trojan horses, spyware, dishonest adware, crime-ware, mine-ware, script or any other software program, computer program that is designed to or has capabilities to adversely affect, harm, or dishonestly monetize any computer hardware, software, firmware, wireless device, operating system, virtual machine, and the data stored thereon or any components thereof, including but not limited to industrial control systems, SCADA, IoT, telephone systems, networking equipment, and data backup and storage facilities or networks.
41. **Media Wrongful Act** means the release or display of any communicative material of any kind or nature under the control or at the direction of an **Insured Organization** that results in any actual or alleged:
- a) defamation, libel, slander, product disparagement or trade libel;
 - b) infringement, interference with or invasion of an individual's right to privacy or publicity, including false light, intrusion upon seclusion, commercial misappropriation of likeness, and public disclosure of private facts;
 - c) plagiarism, piracy, or misappropriation of ideas under implied contract;
 - d) infringement of copyright, trademark, trade name, trade dress, title, slogan, service mark or service names; or
 - e) domain name infringement or improper deep-linking or framing.
42. **Named Insured** means the entity stated in Item 1. of the Declarations.
43. **Network Security Event** means any actual or suspected:
- a) gaining of access or use of a **Computer System** by an unauthorized person; or an authorized person in ways not authorized by an **Insured Organization**;
 - b) attack by **Malicious code** which infects a **Computer System**, or propagation of **Malicious Code** from a **Computer System**;
 - c) denial of service attack made against a **Computer System** or originating from a **Computer System**;
 - d) acquisition, access, loss, or disclosure of **Corporate Information**, a password, or access code not authorized by an **Insured Organization**; and
 - e) the failure to provide any authorized user access to the **Insured Organization's** website or **Computer System** due to the failure or violation of the security of a **Computer System**.
44. **Network Security Wrongful Act** means any actual or alleged error, misstatement, misleading statement, act, omission, neglect, breach of duty, or other offense committed or attempted by an **Insured**, based upon or resulting in a **Network Security Event**.
45. **Non-IT Products or Suppliers Systems** means any computer hardware, software, firmware, wireless device, voice-based telecommunication system, operating system, virtual machine, as well as any data stored thereon, and:
- a) associated input, output, processing, data storage, and mobile devices, networks, operating systems, application software, networking equipment, storage area networks, and other electronic data storage or backup facilities; and

- b) including, but not limited to, associated telephone systems, remote access systems, peripheral communication equipment and systems, industrial control systems including SCADA, IoT, media libraries, extranets, and offline electronic data storage facilities;

which are operated, used, or dependent-upon by a third-party whom supplies products or services to an **Insured**.

46. **Notification Loss** means costs and expenses to:

- a) provide any reasonable or legally required notification services individuals or entities affected by an **Information Privacy Event**, including mailing or other communications duties to notify natural persons whose **Confidential Information** was wrongfully disclosed, accessed, acquired, or otherwise compromised or impacted as a result of an **Information Privacy Event**; and
- b) retain the services of a **Cyber Response Firm** to provide consultative and professional services related to **Notification Loss** described in this definition.

47. **PCI-DSS Claim** means any **Claim** brought by or on behalf of a Payment Card Association or entity processing or providing payment card transactions, based upon an **Insured Organization's** actual, alleged, or potential non-compliance with PCI Data Security Standards, including but not limited to:

- a) failure to protect, store, handle, destroy, or control payment account or payment card data, including applicable **Confidential Information**; or
- b) non-compliance with EMV specifications or mobile payment security requirements.

48. **PCI-DSS Fines, Penalties and Assessments** means monetary fines, penalties, assessments, chargebacks, reimbursements, and fraud recoveries, including card reissuance costs, the **Insured Organization** is legally obligated to pay due to a **PCI-DSS Claim**.

49. **PCI-DSS Response Expenses** means costs and expenses to retain the services of a qualified Payment Card Industry Forensic Investigator, to determine the cause and scope of **PCI-DSS Claim** and a Qualified Security Assessor (QSA) to validate an **Insured Organization's** compliance with PCI Data Security Standards following a **PCI-DSS Claim**.

50. **Period of Restoration** means the continues period of time that begins when a **System Disruption** first occurs and ensuing **Waiting Period** has elapsed; and ends on the date when **Computer Systems** are, or could have been, repaired or restored with reasonable speed to the same functionality and level of service which existed prior to the system disruption. The **Period of Restoration** shall not exceed 365 days from the date the applicable **System Disruption** first occurred. The **Policy Period** shall not cut short the **Period of Restoration**.

With respect to **Non-IT Products or Suppliers Systems**, the **Period of Restoration** will end at which time products or services relied upon by an **Insured Organization** have completely resumed, or alternative suppliers have been obtained.

51. **Policy** means this contract of insurance including the **Application**, any Declarations, and any endorsements or variations, all material to and forming part hereof.

52. **Policy Period** means the period of time set forth in Item 2. of the Declarations unless terminated earlier, and specifically excluding any **Extended Reporting Period**.
53. **Privacy Regulations** means statutes, laws and regulations associated with the confidentiality, access, controls and use of personally identifiable, non-public information, including, but not limited to:
- a. Health Insurance Portability and Accountability Act of 1996 (Public Law 104- 191)(“HIPAA”);
 - b. Gramm-Leach-Bliley Act of 1999, also known as the Financial Services Modernization Act of 1999;
 - c. state and federal statutes and regulations regarding the security and privacy of consumer information;
 - d. governmental privacy protection regulations, statutes, or laws associated with the control and use of personal information;
 - e. privacy provisions of consumer protection laws, including the Federal Fair Credit Reporting Act;
 - f. California Consumer Privacy Act (“CCPA”);
 - g. Children’s Online Privacy Protection Act; and
 - h. The General Data Protection Regulation (“GDPR”) or other similar privacy laws worldwide.
54. **Public Relations Loss** means costs and expense to:
- a) protect or restore the **Insured Organization’s** reputation.
 - b) mitigate financial harm to the **Insured Organization’s** business; and
 - c) retain the services of a **Cyber Response Firm** to provide legal, consultative, and professional services related to the **Public Relations Loss** described in this definition.
55. **Regulatory Assessments and Expenses** means reasonable and necessary costs and expenses an **Insured** becomes legally obligated to pay as a result of a **Regulatory Claim** to retain the services of a **Cyber Response Firm** to perform a legally required audit or assessment, including related consultative and professional services, of the **Insured Organization’s** privacy practices or **Computer System**; and shall include:
- a) any costs and expenses incurred in order to comply with applicable **Privacy Regulations** under the law of the applicable jurisdiction which most favors coverage; and
 - b) up to \$50,000 of reasonable and necessary costs and expenses to create, iterate, improve, or certify an **Insured Organization’s** compliance with **Privacy Regulations**, including but not limited to the U.S. Health Insurance Portability and Accountability Act and/or the Health Information Technology for Economic and Clinical Health Act (HITECH), as amended.
56. **Regulatory Claim** means a **Claim**, including a request for information or an investigation into a potential violation of **Privacy Regulations**, brought by, or on behalf of, the Federal Trade Commission, the Federal Communications Commission, any supervisory authority enforcing the General Data Protection Regulation Standard, or any state attorney general, government licensing entity, regulatory authority, or any federal, state, local, or foreign governmental entity in such entity’s official capacity; which may reasonably be expected to give rise to a **Regulatory Claim** or **Regulatory Fines and Penalties**.
57. **Regulatory Fines and Penalties** means **Regulatory Assessments and Expenses**, or civil fines or penalties resulting from a **Regulatory Claim**, including GDPR, CCPA, or other similar regulations, imposed against an **Insured** by the Federal Trade Commission, the Federal Communications Commission, any supervisory

authority enforcing the GDPR standard, or any state attorney general, government licensing entity, regulatory authority, or any federal, state, local or foreign governmental entity.

58. **Reputational Harm Event** means an adverse publication, report, communication, or any other media form which:
- a) directly states or alleges the **Insured Organization**, including any affiliated brand, has experienced an **Information Privacy Event** or **Network Security Event**, regardless of the factual accuracy of any statement(s); or
 - b) is reasonably expected to lead, or has already led, to an **Insured Organization's** damage or harm to public perception, reputation, goodwill, or provable loss of income.
59. **Reputational Harm Indemnity Period** means three hundred and sixty five (365) days beginning from the date that a **Reputational Harm Event** first occurred.
60. **Reputational Harm Loss** means the following amounts incurred by an **Insured Organization** during the **Reputational Harm Indemnity Period**:
- a) net profit before income taxes that would have been earned had no **Reputational Harm Event** occurred;
 - b) net loss before income taxes that would have been avoided had no **Reputational Harm Event** occurred; and
 - c) any associated costs to retain the services of a third party forensic firm to determine these amounts.
61. **Retention** means the amounts stated in Item 5. of the Declarations that are payable by the **Insured** in respect of every **Claim** and **Cyber Event**.
62. **Reward Expense Loss** means reasonable and necessary costs and expenses incurred or paid by an **Insured Organization** for information not otherwise available which leads to the arrest of a natural person or an entity responsible for an **Information Privacy Event**, **Network Security Event**, or **Extortion Threat**.
63. **Run-off Period** means one of the periods described in Section VII General Conditions, item 7., which is elected and purchased.
64. **Social Engineering Loss** means the **Insured Organization's** loss of funds, money, securities, or the value of other property lost or transferred as a result of **Fraudulent Inducement Instructions**.

Social Engineering Loss shall not include any amounts:

- a) a Financial Institution or other third party has agreed to indemnify or reimburse the **Insured Organization** for following such fraud;
- b) of income lost or investment returns not realized as a result of such fraud;
- c) lost as a result of use of credit, debit, charge, access, convenience, or other cards or the information or data contained within, or on, such cards; or
- d) lost as a result of the extension of any loan, credit, or similar promise to pay.

65. **Subsidiary** means any corporation, limited liability company, or partnership while more than fifty percent (50%) owned or controlled by the **Insured**, or any joint venture while an **Insured Organization** has managerial control, or while it has the right to elect or designate or otherwise appoint or directly control the appointment of more than fifty percent (50%) of such entity's directors, trustees, managers, or equivalent.
66. **System Disruption** means the measurable interruption, suspension, degradation, **Voluntary Shutdown**, or failure in the services of **Insured Computer Systems**, **External Computer Systems**, or **Non-IT Products or Suppliers Systems**, caused by a **Network Security Event**, **Information Privacy Event**, or **System Failure**.
67. **System Failure** means any unplanned and measurable interruption, suspension, degradation, or failure of **Computer Systems**, including but not limited to unplanned human error or programming error, which is not caused by a **Network Security Event** nor an **Information Privacy Event**.
68. **Third Party Event Response Expenses** means an **Insured Organization's** obligation under a written contract to indemnify a third party for:
- a) **Forensics and Technical Response Loss**;
 - b) **Legal Services Loss**;
 - c) **Public Relations Loss**;
 - d) **Notification Loss**; and
 - e) **Credit and Identity Monitoring Loss**;
- as a result of the **Insured Organization's Information Privacy Event**, but only to the same extent that it would have been otherwise covered by this **Policy** if incurred by an **Insured Organization**.
69. **Uncollectible Invoice** means the **Insured Organization's** inability to collect payment that it is due from a third party, if such payment was transferred or misdirected to the incorrect recipient, resulting from the unauthorized access of **Computer Systems** by an entity which is not an **Insured Organization** or by a person who is not an **Insured Person**; as a result of **Invoice Manipulation Fraud**.
70. **Utility Loss** means additional amounts incurred by the **Insured Organization** for its use of, or access to, any utility service, including telecommunications service, telephone toll, telecommunications, cloud, software television, and internet; resulting from the gaining of access to, or use of, an **Insured Computer System** in an unauthorized way, including cryptojacking, utilizing telecommunications or telephone system(s) from a remote location.
71. **Voluntary Shutdown** means an **Insured's** voluntary, intentional, and reasonably necessary shutdown of **Insured Computer Systems** in response to a credible threat, or when seeking to mitigate, reduce, quell, or stop an **Information Privacy Event**, **Network Security Event**, or **Extortion Threat**.
72. **Waiting Period** means the period of time specified in Item 6. of the Declarations.
73. **We, Us, Our** means the insurers listed in Item 9. of the Declarations.

74. **Wrongful Act** means any **Information Privacy Wrongful Act, Network Security Wrongful Act, or Media Wrongful Act.**

III. EXCLUSIONS

We shall not be liable for any **Loss or Damages** resulting from, and shall not be obligated to pay any **Claim Expenses** from any **Claim** against an **Insured**:

1. Antitrust

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged violation of any anti-trust statute, legislation or regulation including the Sherman Anti-Trust Act, the Clayton Act or any similar provisions of any federal, state or local statutory law or common law; or unfair competition, price fixing, deceptive trade practices.

2. Bodily Injury

for any actual or alleged bodily injury, sickness, disease or death of any person, mental anguish, emotional distress, mental injury, mental tension, pain or suffering or shock, or loss of consortium resulting therefrom. Provided however, this exclusion shall not apply to Insuring Clause B. 1 and B. 4 for any **claim** as a direct result of mental anguish, emotional distress, or mental injury.

3. Core Infrastructure

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving failures of core internet infrastructure, including Domain Name Systems (DNS), registrars; satellite failures; electrical or mechanical failures including spike, brownout or blackout; failures of overhead or subterranean transmission and distribution lines; or outage to utility infrastructure, including gas, water, telecommunications, telephone, internet, or cable, unless such infrastructure is under the **Insured's** direct operational control. Provided however, this exclusion shall not apply to Insuring Agreement A. 1) **Event Management Expenses**.

4. Deliberate Acts

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving the **Insured's** willful deliberate, malicious, fraudulent, dishonest, or criminal act or violation of law with the knowledge or acquiescence of any member of the **Control Group**. Provided however, this exclusion shall not apply to **Claim Expenses** incurred in defending any such **Claim** until such time that there is final adjudication establishing such conduct, at which time the **Insured Organization** shall reimburse **Us** for all **Claim Expenses** incurred. Only facts, or knowledge possessed by the **Control Group** regarding the foregoing conduct shall be imputed to other **Insureds**.

5. Discrimination

for any actual or alleged discrimination of any kind, including but not limited to age, color, race, gender, religion, creed, national origin, marital status, sexual orientation, sexual preference, disability, financial condition, or pregnancy, including violations of civil rights or discrimination or retaliatory conduct of any kind.

6. False Advertising

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any actual or alleged false advertising, inaccurate, inadequate or incomplete description, or failure of any goods or services to conform with any represented quality of performance.

7. Fees or Chargebacks

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any fees, expenses, or costs paid to or charged by an **Insured**, including chargebacks, merchant services, transfer fees, or transaction fees; Provided however, that this exclusion shall not apply to any **PCI-DSS Claim**.

8. Force Majeure

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any **Loss** incurred as a result of a natural disaster, including fire, smoke, explosion, lightning, wind, water, flood, earthquake, volcanic eruption, tidal wave, landslide, hail or any other natural physical event however caused.

9. Funds

for any actual or alleged **Loss** in any way involving:

- a. Forfeiture, decrease in value, or theft of securities, investments, currency or cryptocurrency.
- b. Trading losses, liabilities, unauthorized trading, or changes in trading account value;
- c. Interest income; or
- d. The value of electronic funds, money, securities, or wire transfer.

Provided however, this exclusion does not apply to Insuring Agreement I. A. 4) Fraud.

10. **Insured vs Insured**

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any **Claim** made by or on behalf of an **Insured** against another **Insured**. Provided however, this exclusion shall not apply to any **Claim** brought by an **Employee** outside of the **Control Group** as a result of an **Information Privacy Event** or **Network Security Event**, nor shall it apply to any **Insured** included as an additional insured or to an **Extortion Event** caused by a rogue **Employee**.

11. Prior knowledge

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any act, fact, error, omission, event, incident, occurrence, claim or circumstance that could reasonably be expected to give rise to a **Claim** or **Loss** when such act, fact, error, omission, event, incident, occurrence, claim or circumstance was known prior to the Inception Date of this **Policy** by any member of the **Control Group**.

Provided however, this exclusion shall not apply to **Claim Expenses** incurred in defending any such **Claim** until such time that there is final adjudication establishing such conduct, at which time the **Insured Organization** shall reimburse **Us** for all **Claim Expenses** incurred. Facts or knowledge possessed by one member of the **Control Group** regarding the foregoing conduct shall not be imputed to other members of the **Control Group**.

12. Prior Notice

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any act, fact, error, omission, event, incident, occurrence, claim or circumstance that has previously been noticed under another insurance policy prior to the inception of this **Policy**.

13. Pollution

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any actual or alleged or threatened presence, discharge, dispersal, release, escape or failure to detect pollutants or solid, liquid, gaseous or thermal irritant or contaminant of any kind, including smoke, vapor, soot, fumes, other air emission, acids, toxic chemicals, alkalis, mold, spores, fungi germs, odor, waste, water, oil or oil product, infectious or medical waste, asbestos or asbestos product, lead or lead product, noise, and electric, magnetic, or electromagnetic field chemicals, or waste (including waste material to be recycled, reconditioned, or reclaimed), whether or not such presence, discharge, dispersal, release, escape or failure to detect results from the Insured's activities or the activities of others or whether such presence happened suddenly, gradually, accidentally or intentionally.

Provided however, this exclusion shall not apply to an otherwise covered **Cyber Event, Claim** for **Network Security Event** or **Regulatory Claim**.

14. Property Damage

for damage to, or destruction of any tangible property or securities, including loss of use thereof.

15. Nuclear, Biological, and Chemical Contamination

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any damage, liability or expense directly or indirectly caused by or contributed to, by, or arising from:

- a. ionizing radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste;
- b. the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation reactor or other nuclear assembly or nuclear component thereof;
- c. any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter;
- d. the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter; or
- e. any chemical, biological, bio-chemical or electromagnetic weapon.

16. Patent, Software Copyright

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any:

- a. invalidity, infringement, violation or misappropriation of any patent, software copyright; or
- b. misappropriation or disclosure of a trade secret; Provided however, this subparagraph shall not apply to the inadvertent release of a trade secret due to a **Cyber Event**.

16. Unsolicited Communications

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged violation of:

- a. the *Telephone Consumer Protection Act* (U.S.) (TCPA);
- b. the *CAN-SPAM Act of 2003* (U.S.);
- c. any federal, state, territorial, or local statute, ordinance, regulation, or directive other than the items listed above in subparagraphs a. and b., above, or any other legal liability, at common law or otherwise, that addresses, prohibits, or limits the printing, dissemination, disposal, monitoring, collecting, recording, use of, sending, transmitting, communicating or distribution of material or information; or
- d. any amendment, addition, or replacement of any statute, ordinance, regulation, rule, or directive shown in subparagraphs a. and b., above.

Provided however, this exclusion does not apply if such unsolicited electronic dissemination of faxes, electronic mail or other communications to multiple actual or prospective customers by the **Insured** or any other third party was caused by a **Malicious Code** or hacker.

17. Consumer Protection Laws

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in

consequence of, or in any way involving, any **Insured's** violation of the Truth in Lending Act, Fair Debt Collection Practices Act, Fair Credit Reporting Act, or the Fair and Accurate Credit Transactions Act or any amendment thereto or any rules or regulations promulgated thereunder, or any similar federal, state, common, or foreign law.

Provided however, this exclusion shall not apply to Insuring Clause B.1, any **Claim** arising out of the actual or alleged disclosure or theft of **Confidential Information** resulting from an **Information Privacy Event**.

18. War

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any confiscation, nationalization, requisition, strikes, labor strikes or similar labor actions; war, invasion, or warlike operations, civil war, mutiny, rebellion, insurrection, civil commotion assuming the proportions of or amounting to an uprising, military coup or usurped power. Provided however, this exclusion shall not apply to acts of **Cyberterrorism**.

19. Warranty, Guarantee, Liquidated Damages

alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any warranty, guarantee, or liquidated damages. Provided however, this exclusion shall not apply to any warranty or guarantee pertaining to the **Insured's** privacy policy, promise to safeguard information, or **PCI-DSS Claim**.

IV. LIMITS OF INSURANCE

1. The Aggregate Policy Limit of Liability stated in Item 4. of the Declarations is **Our** maximum liability under this **Policy** for the duration of the **Policy Period** or, if exercised, the Extended Reported Period.
2. Any Sublimits of Insurance as stated in Item 5. of the Declarations are a part of and not in-addition to the Aggregate Policy Limit of Liability stated in Item 4. of the Declarations.
3. **We** shall have no further obligations or liability under the **Policy** upon exhaustion of the Aggregate Limit of Insurance, including the continuation of payment of **Loss, Damages, or Claims Expenses** or the duty to defend or investigate any **Claim**.

V. RETENTION

1. **Our** liability shall only apply to that portion of **Loss, Damages, and Claim Expenses** arising from each **Claim, Information Privacy Event, or Network Security Event** which exceeds the applicable **Policy Retention**.
2. If different parts of a single **Claim, or Cyber Event** are subject to different applicable **Retentions** under this **Policy**, the applicable **Retentions** shall be applied separately to each part of such **Claim or Cyber Event**, however, the sum of such applicable **Retentions** shall not exceed the largest applicable **Retention**.

3. Only with respect to **Forensics and Technical Response Loss**, no **Policy Retention** shall apply.

VI. DEFENSE & SETTLEMENT OF CLAIMS

1. **We** shall have the right and duty to defend any **Claim** covered by Insuring Agreement B. Liability and Defense; even if allegations are groundless, false, or fraudulent.
2. Unless defense counsel or breach counsel is chosen from the list of Pre-Approved Vendors specified by **Us**, as amended, defense counsel or breach counsel shall be appointed with **Our** prior written consent, not to be unreasonably withheld. However, in the absence of agreement, **Our** decision shall be final.
3. **We** shall not settle any **Claim** without the written consent of the **Insured**. In the event the **Insured** refuses to consent to a settlement recommended by **Us** and acceptable to the claimant(s), then:
 - a. **We** shall pay the sum of all **Damages** for which the **Claim** could have been settled, plus all **Claim Expenses** incurred up to the time **We** made our recommendation to the **Insured**; and
 - b. **We** shall pay and maintain responsibility for eighty percent (80%) of all further **Damages** and **Claim Expenses**.
4. If a **Claim** includes both covered and uncovered matters, then coverage shall apply as follows:
 - a. One hundred percent (100%) of **Claim Expenses** incurred by the **Insureds** who are afforded coverage for such **Claim** shall be considered covered; and
 - b. All remaining **Damages** from such **Claim** shall be allocated between covered and uncovered **Damages**.

VII. GENERAL CONDITIONS

1. Territory
Coverage under this **Policy** shall extend to **Wrongful Acts** taking place or **Claims** made anywhere in the world, where legally permissible.
2. Notices
 - a. As a condition precedent to **Your** rights to payment under this **Policy**, **You** shall provide **Us** with written notice of any **Cyber Event** or **Claim** as soon as practicable after a member of the **Control Group** first becomes aware of such **Cyber Event** or **Claim**, but in no event later than:
 - i. ninety (90) days after the end of the **Policy Period**; or
 - ii. if the **Claim** is first made against the **Insureds** during the **Extended Reporting Period**, if purchased, ninety (90) days after the end of the **Extended Reporting Period**.
 - b. If during the **Policy Period** or the **Extended Reporting Period**, if purchased, any of the **Insureds** first becomes aware of a specific **Wrongful Act** which may reasonably give rise to a future **Claim** covered under this **Policy**, and if the **Insureds**, during the **Policy Period** or the **Extended Reporting Period**, if purchased, give written notice to **Insurer** as soon as practicable of:
 - i. a description of the facts, circumstances, or allegations anticipated;
 - ii. the identity of the potential claimants;
 - iii. the circumstances by which the **Insureds** first became aware of the facts of circumstances;
 - iv. the identity of the **Insureds** allegedly involved;

- v. the consequences which have resulted or may result; and
- vi. the nature of the potential monetary damages and non-monetary relief;

then, any **Claim** made subsequently arising out of such facts or circumstances shall be deemed for the purposes of this **Policy** to have been made at the time such notice was received by the **Insurer**. No coverage is provided for fees, expenses and other costs incurred prior to the time such facts or circumstances result in a **Claim**.

3. Extended Reporting Period

If this Policy is cancelled or is not renewed by **Us**, for reasons other than non-payment of premium or if the **Insured** elects to cancel or not to renew this **Policy**, then the **Insured** shall have the right, upon payment of an additional premium as shown in Item 7. of the Declarations, to an extension of coverage granted by this **Policy** ("**Extended Reporting Period**") for **Claims** first made against any **Insured** during the applicable **Extended Reporting Period** elected following the effective date of such cancellation or non-renewal, but only with respect to any **Wrongful Act** committed before such date and otherwise covered by the cancelled or non-renewed **Policy**. **Insured** shall have the right to elect only one of the **Extended Reporting Periods** set forth in Item 7. of the Declarations.

- a. As a condition precedent to the right to purchase the **Extended Reporting Period** the total premium for the **Policy** must have been paid. Such right to purchase the **Extended Reporting Period** shall terminate unless written notice, together with full payment of the premium for the **Extended Reporting Period**, is received by **Us** within thirty (30) days after the Policy expiration date. If such notice and premium payment is not so given to **Us**, there shall be no right to purchase the **Extended Reporting Period**.
- b. The exercise of the **Extended Reporting Period** shall not in any way increase or reinstate the limit of liability under this **Policy**.

4. Interrelated Claims

All **Claims** and **Cyber Events** arising out of the same related or continuing facts, facts, circumstances, or events shall be considered a single **Claim** or **Cyber Event**, without regard to the number of **Insureds**, **Claims** or claimants. All such **Claims** or **Cyber Events** shall be deemed to have been made at the time of first such **Claim** or **Cyber Event**.

5. Other Insurance

This **Policy** is excess to any other valid and collectible insurance; however, notwithstanding the foregoing, with respect to Insuring Agreement A. 1) Event Management Expenses, this **Policy** shall be primary to any other valid and collectible insurance.

6. Recovery and Subrogation

The **Insured** shall maintain all rights of recovery against any third party. The **Insured** shall execute and deliver instruments and papers and do whatever else is necessary to secure such rights and shall do nothing to prejudice such rights.

- a. However, if prior to the date of loss, or event giving rise to a loss, of the relevant **Claim** the **Insured** has agreed via written contract with a third party to waive such rights of subrogation, we waive our rights of subrogation against such third party.

7. Run-off Coverage

In the event of the **Named Insured's** acquisition by or merger into another entity, or the **Insured's** liquidation or dissolution, coverage afforded under this **Policy** following the date of acquisition shall only be afforded for **Cyber Events** occurring prior to such acquisition, unless written waiver of **Change of Control** has been granted by us. Further, upon such acquisition, the premium paid for this **Policy** shall become fully-earned and the **Policy** is non-cancellable.

The **Named Insured** shall have the right and option to purchase a **Run-off Period** for Extended Reporting Period Premium coverage for the periods of time and additional **Policy** premium charges as set forth in Item 7. of the Declarations. The election must be made prior to the expiration of the **Policy Period**. The right to purchase a **Run-Off Period** shall terminate on the expiration of the **Policy Period**.

8. Acquisition of Entity

If any **Named Insured** or any **Subsidiary** completes the legal acquisition of another entity during the **Policy Period**, then that acquired entity will automatically be included as an **Insured** but only with respect to **Cyber Events, Claims** or **Wrongful Acts** sustained or occurring after the date of the acquisition, unless that acquired entity has an annual revenue of more than thirty-five (35%) of the **Named Insured's** total gross annual revenue (according to the most recent **Application**).

In such case where the acquired entity's gross revenue exceeds such thirty-five (35%) threshold, the **Named Insured** must notify and obtain **Our** written consent within ninety (90) days of such legal acquisition. For avoidance of doubt, coverage afforded under this **Policy** remains in force during these ninety (90) days.

9. Cancellation

This **Policy** is non-cancellable by **US**, unless due to non-payment of premium. If this **Policy** is cancelled by the **Named Insured**, **We** will refund the unearned premium computed on a pro-rata basis. All fees are fully earned and will not be included as a part of any refund. The **Named Insured** will have an automatic **Extended Reporting Period** for ninety (90) days after cancellation. The **Named Insured** may elect a longer **Extended Reporting Period** during such ninety (90) day, period pursuant to Section **VII. General Conditions**, subparagraph 3. Extended Reporting Period,

- a) This **Policy** may be canceled by the **Named Insured** by giving written notice, must include the date of cancellation will be effective, to **US** at the address stated in the Declarations.
- b) This may only be canceled by **US** due to non-payment of premium, in which notice shall be provided at least ten (10) days prior to such cancellation.
- c) The mailing (or emailing) of the notice will be sufficient proof of notice, and this **Policy** will terminate at the date and hour specified in the notice.

10. Additional Insureds

If an **Insured Organization** has agreed in writing to add any third-party entity as an additional insured under this **Policy**, then such third-party entity shall be considered an **Insured** under this **Policy**, but only for **Wrongful Acts** actually or allegedly committed or attempted by an **Insured Organization**, not such third-party itself.

11. Assistance and Cooperation

The **Insured** shall cooperate with **Us** in all investigations relating to this **Policy**. The **Insured** shall execute or cause to be executed all documents and papers and render all assistance as requested by **Us**.

- a. Upon **Our** request, the **Insured** shall assist in making settlements in the conduct of all third party dispute resolution procedures and in enforcing any right of contribution or indemnity against any person or organization who may be liable to the **Insured** with respect to insurance afforded under the **Policy**, and the **Insured** shall attend hearings and trials and assist in securing and giving evidence and obtaining the attendance of witnesses.
- b. It is a condition precedent to **Our** liability that the **Insured** shall not admit liability, make any payment, incur any expense, enter into any settlement, stipulate to any judgement or award, or dispose of any **Claim** without **Our** prior written consent. However, the prompt public admission of an **Information Privacy Event** or **Network Security Event** impacting non-public personally identifiable information as required by governmental body, privacy legislation, non-disclosure agreement, confidentiality agreement, business associate agreement, or credit card association operating requirements will not be considered as an admission of liability requiring **Our** prior consent.
- c. **We** shall have the right to make any investigation **We** deem necessary with respect to coverage, including the **Application**.

12. Allocation

All recoveries from third parties for payments of **Loss, Damages, PCI-DSS Fines, Penalties and Assessments, PCI-DSS Response Expenses, Regulatory Fines and Penalties, or Claim Expenses** shall be applied in the following order of priority after first deducting the costs and expenses incurred in obtaining such recovery:

- a. to **Us**, to reimburse **us** for any **Retention We** paid on an **Insured's** behalf and for any **Damages, Loss, or Claims Expenses** that **We** paid under this **Policy**; and then
- b. to the **Insured**, to reimburse the **Insured** for any **Retention** such **Insured** paid and for any other amounts not covered under this **Policy**.

13. Transfers and Assignments

This **Policy**, including any rights or duties herein, may not be transferred or assigned to another party unless **We** have provided our prior written consent to such transfer or assignment.

14. Action Against **Us**

No action shall lie against **Us** unless, as a condition precedent thereto, the **Insured** has been in full compliance with all terms of its **Policy**. No person or entity shall have any rights under this **Policy** to join **Us** as a party to any action against any **Insured** to determine such **Insured's** liability, nor shall **We** be impleaded by such **Insured** or the legal representatives of such **Insured**.

15. Alternate Dispute Resolution

If any dispute arises between **Us** and any **Insured** as it relates to this **Policy**, or any term or condition herein, **We** and such **Insured** agree to make a determined effort to solve such dispute via alternative dispute mediation or through a third-party mediator. The costs to procure such mediation shall be paid by **Us**, if applicable, but **Our** payments of such costs shall not persist past a single alternative dispute mediation effort.

16. Inspection of Books and Records

We shall be permitted, but not obligated, to inspect any of the **Insured's** property, operations, or records at **Our** cost.

17. Bankruptcy or Insolvency

Bankruptcy or insolvency of any **Insured** does not relieve us of any of our obligations, rights, defenses, or duties under this **Policy**.

18. Headings or Captions

The headings or captions used in this Policy are for reference only and do not affect the meaning of this **Policy**.

Specimen Copy

PRE-APPROVED CLAIMS PANEL

Please find the **Pre-approved Claims Panel** for this **Policy**:

Breach Coach/ Legal Defense

	Contact	Email or Web Address	Phone
Mullen Coughlin LLC	John Mullen	info@mullen.law	610-608-8785
McDonald Hopkins	Jim Giszczak	JGiszczak@McDonaldHopkins.com	248-220-1354
Cipriani & Werner, P.C.	Response Team	nationwidecyber@c-wlaw.com	610-862-1928
Cooley LLP	David Navetta	Dnavetta@Cooley.com	720-566-4153
Baker Hostetler	David Sherman	dsherman@bakerlaw.com	215-564-8380

International Breach Coach

Kennedys	Nicole Putnam	Nicole.Putnam@kennedyslaw.com	212-832-4920
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Forensic Investigation

Charles River Associates	Bill Hardin	Bhardin@CRAI.com	312-619-3309
Ankura	Todd Doss	Todd.Doss@ankura.com	215-832-4485
Tracepoint	Brendan Rooney	brendan.rooney@tracepoint.com	844-872-2304
Arete	Lynn Peachey	Arete911@AretelR.com	866-210-0955
Kivu	Incident Hotline	IncidentResponse@kivuconsulting.com	855-548-8767
Kroll	Ben Demonte	bdemonte@kroll.com	201-687-8732
CrowdStrike	Adam Contini	adam.cottini@crowdstrike.com	917-797-7510
Control Risks	Margaret Burtoft	Maggie.burtoft@controlrisks.com	818-631-1447
CYBIR	Mike Nelson	mn@cybir.com	484-406-5357

Notification, Call Center and Monitoring

Epiq Systems	Larry Brown	lbrown@epiqglobal.com	203-292-5158
AllClear ID	Response Team	Responseteam@allclearid.com	877-441-3009
Experian	Michael Morelli	Michael.Morelli@ExperianInteractive.com	516-732-0300
ID Experts	Jeremy Henley	Jeremy.Henley@IDExpertsCorp.com	425-314-7788
TransUnion	Gillian Johnson	Gjohnso@Transunion.com	312-985-3629
Symantec	Incident Response	IncidentResponse@Symantec.com	855-378-0073
Kroll	Hillary Parkins	hillary.parkins@kroll.com	615-924-7932

NATIONWIDE CYBER INSURANCE LOSS CONTROL SERVICE PARTNERS

Incident Response Planning/Hosting

NetDiligence	Mark Greisiger	Mark.Greisiger@NetDiligence.com	610-525-6383
Symantec	Incident Response	IncidentResponse@Symantec.com	855-378-0073
Tracepoint	Brendan Rooney	brendan.rooney@tracepoint.com	844-872-2304
Arete	Lynn Peachey	Arete911@AretelR.com	866-210-0955

continued...

Kivu	Incident Hotline	IncidentResponse@kivuconsulting.com	855-548-8767
Speartip	Jarrett Kolthoff	breachresponse@speartip.com	833-997-7327
CyberScout	Nate Spurrier	incidentresponse@cyberscout.com	480-490-9305
Kroll	Ben Demonte	bdemonte@kroll.com	201-687-8732
Control Risks	Margaret Burtoft	Maggie.burtoft@controlrisks.com	818-631-1447
Redpoint Cybersecurity	David Duncan	Duncan@redpointcyber.com	361-455-6875
CrowdStrike	Adam Conttini	adam.cottini@crowdstrike.com	917-797-7510
Cypfer	Darin Bielby	Dbielby@cypfer.com	267-319-2647
CYBIR	Mike Nelson	mn@cybir.com	484-406-5357

Cyber Preperation Platform

Cygnvs	Julie Eichenseer	julie@cygnvs.com	773-495-3749
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Cyber Risk Assessments

NetDiligence	Mark Greisiger	Mark.Greisiger@NetDiligence.com	610-525-6383
Kivu	Incident Hotline	IncidentResponse@kivuconsulting.com	855-548-8767
Control Risks	Margaret Burtoft	Maggie.burtoft@controlrisks.com	818-631-1447
Cypfer	Darin Bielby	Dbielby@cypfer.com	267-319-2647

Compliance readiness

ID Experts	Jeremy Henley	Jeremy.Henley@IDExpertsCorp.com	425-314-7788
Verizon Risk Team	Chris Novak	Chris.Novak@VerizonBusiness.com	914-574-2805
Information Shield	Dave Lineman	Dave@InformationShield.com	713-443-8428
Symantec	Incident Response	IncidentResponse@Symantec.com	855-378-0073
Control Risks	Margaret Burtoft	Maggie.burtoft@controlrisks.com	818-631-1447

Darkweb Activity

SpyCloud	Blaine Jensen	blaine.jensen@spycloud.com	
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Data destruction & recovery

Reclamere	Joseph Harford	Joseph@Reclamere.com	814-684-5505
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Training

Skillbridge, LLC	John Lytle	Jlytle@SkillbridgeTraining.com	781-466-6371
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Public Relations

Edelman	Brooke Buchanan	Brooke.Buchanan@edelman.com	
Jaderoq	Jason Maloni	jmaloni@jaderoq.com	202-834-9677

Forensic Accountants

Charles River Associates	Bill Hardin	Bhardin@CRAI.com	312-619-3309
Baker Tilly	Simon Oddy	Simon.Oddy@bakertilly.com	646-737-1782
Lowers	Dan Devine	ddevine@lowersforensics.com	540-338-7151